

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: HANIFE KOZHANI and HAJRIZ KOZHANI (Plaintiff) – and – OREN GELBART
and AMIRAM GELBART (Defendants)

BEFORE: JUSTICE B.T. GRANGER

COUNSEL: G. Robson, for the plaintiffs
J. Vieira, for the defendants

HEARD: March 22, 2010

ENDORSEMENT

- [1] This action and these motions arise out of a motor vehicle accident that occurred on April 25, 2003. The statement of claim was issued on January 25, 2005. In the statement of claim, Hanife Kozhani alleges that as a result of the negligence of the defendants she suffered impairments to her neck, back, shoulders and legs. She indicates that she suffers headaches, dizziness, depression and anxiety arising out of the injuries which she suffered in the motor vehicle accident.
- [2] On June 2, 2008, counsel for the plaintiff forwarded to counsel for the defendants a medical report of Dr. Bartolucci and Dr. J. Gouws. These reports for the first time suggest that Hanife Kozhani ought to be deemed catastrophically impaired.
- [3] On April 27, 2009, counsel for the plaintiff forwarded to counsel for the defendants an occupational therapy and attendant care assessment report completed by Katrin Klein indicating that Hanife Kozhani required and will continue to require future care. Katrin Klein is a qualified occupational therapist registered to practice with the College of Occupational Therapists of Ontario. She obtained an Honours Bachelor of Science in Human Kinetics from the University of Guelph and a Masters of Science in Occupational Therapy from the University of Western Ontario. Katrin Klein was assisted in the preparation of the occupational therapy and attendant care assessment report by Danielle Randall, RRP, M.Ed. (CRDS). Ms. Randall is a rehabilitation consultant with Rehab First Inc. She has provided case management, vocational rehabilitation and future care costs services with Rehab First since 2002. She is a registered rehabilitation professional (RRP) through the Canadian Association of Rehabilitation Professionals (CARP).
- [4] As a result of receiving the medical reports from Dr. Bartolucci and Dr. Gouws, the plaintiff, Hanife Kozhani, will be putting forward a claim for future care costs. Counsel for Hanife Kozhani has brought a motion seeking to amend the statement of claim by substantially

increasing the claim for damages. Counsel for the defendants does not object to the proposed amendment but seeks an order for a further examination for discovery, an order that Hanife Kozhani attends a psychiatric assessment with Dr. Sam Ozersky in order that he can conduct a catastrophic psychiatric assessment of Hanife Kozhani. In addition, the defence wishes to have a Kendra Vellone, a life care planner, conduct a life care planner assessment of Hanife Kozhani on June 8, 2010 at 11:00 a.m. at Hanife Kozhani's home in Kitchener, Ontario.

- [5] The plaintiff, through her counsel, does not object to the further discoveries and an order that she attend on Dr. Sam Ozersky on April 12, 2010, at 86 Glen Park Avenue in North York, Ontario, M6B 2C4 at 2:00 p.m. in order that he can conduct a catastrophic psychiatric assessment of the plaintiff. The plaintiff's counsel has agreed to the catastrophic psychiatric assessment by Dr. Sam Ozersky on the undertaking of counsel for the defendants that Dr. Gitta Talfer, who had conducted a psychiatric assessment of the plaintiff for the defence would no longer be involved in this case and would not be called as a witness at trial. Dr. Tafler has indicated in her correspondence, that she does not feel she has the expertise to conduct a catastrophic psychiatric assessment of the plaintiff.
- [6] Counsel for the plaintiff agrees that pursuant to s. 105 of the *Courts of Justice Act* an assessment by a person who is not a "health practitioner" may be ordered where such an assessment is necessary to the diagnosis of the health practitioner. In this case, the plaintiff has been subjected to an occupational therapist/life care planner assessment which I have no doubt will be an important factor upon which the plaintiff will rely at trial to substantiate her claim that she be deemed catastrophically impaired and to establish her future care costs.
- [7] Notwithstanding that there has been a life care planner assessment of Hanife Kozhani for the purposes of this trial, counsel for the plaintiff objects to the defence being entitled to conduct such an assessment. The basis upon which such an assessment can be ordered is:
 - (i) Necessity;
 - (ii) Fairness;
 - (iii) Prejudice.
- [8] Mr. Robson, in his very able argument, does not strenuously argue that the defence in the circumstances of this case could establish necessity and fairness but argues that there must be sufficient and cogent evidence to establish necessity and fairness and in this case the defence has failed to adduce such evidence. According to Mr. Robson, there is no evidence that Dr. Ozersky requires such an assessment in order to prepare a meaningful expert report. Although Dr. Ozersky has not stated directly that he requires such an assessment, I am convinced on all of the evidence that the defence has established that such an assessment is necessary and in the interest of fairness should be granted. Dr. Talfer, in her correspondence dated December 4, 2009, states:

With respect to your letter of November 9th 2009 the examination for a catastrophic impairment is beyond my expertise as I am not qualified to do

catastrophic assessments. With respect to O.T. and future care, that assessment requires an opinion from an occupational therapist with the appropriate level of expertise, as I am not qualified to comment with respect to future care needs.

- [9] In reaching this decision, I am mindful that such an assessment may to some extent be stressful for Hanife Kozhani, but it would be unfair to the defence to allow Hanife Kozhani to put forward this claim without allowing the defence to have an independent occupational therapy and attendant care assessment report.
- [10] Accordingly, an order shall go:
- 1) Allowing the proposed amendment;
 - 2) Allowing the defence to conduct a further examination for discovery of Hanife Kozhani;
 - 3) Requiring Hanife Kozhani to attend on Dr. Sam Ozersky for psychiatric assessment on April 12, 2010 at 2:00 p.m. at 86 Glen Park Avenue, North York, Ontario, M6B 2C4;
 - 4) Allowing Kendra Vellone to conduct an occupational therapy and attendant care assessment report of Hanife Kozhani at her residence in Kitchener, Ontario on June 8, 2010 commencing at 11:00 a.m.
- [11] Counsel may make written submissions on costs of these motions within 30 days.

"Justice B. T. Granger"
Justice B.T. Granger

Date: April 8, 2010